



CHAPTER cxliv.

An Act for incorporating and conferring powers upon the Hessle Gas Light and Coke Company. A.D. 1905.

[4th August 1905.]

WHEREAS in the year one thousand eight hundred and sixty-one certain persons formed themselves into a company under the name of the Hessle Gas Light and Coke Company Limited (hereinafter referred to as "the existing company") for the purpose of supplying the town and neighbourhood of Hessle in the east riding of the county of York with gas and such company was duly registered on the eleventh day of June one thousand eight hundred and sixty-one under the Joint Stock Companies Acts 1856 and 1857 :

And whereas by a special resolution of the members of the existing company duly passed on the ninth day of March one thousand nine hundred and four and confirmed on the twenty-fifth day of March one thousand nine hundred and four it was resolved that the provisions of the memorandum of association of the existing company with respect to the objects of the company should be altered by adding to its objects various other matters connected with the business usually carried on by gas companies and also the supply of electricity :

And whereas by an order of the Chancery Division of His Majesty's High Court of Justice dated the eighteenth day of June one thousand nine hundred and four and made in the matter of the Hessle Gas Light and Coke Company Limited and in the matter of the Companies (Memorandum of Association) Act 1890 the said last-mentioned resolution was duly confirmed by the said court and the existing company is now carrying on its business in pursuance of the memorandum of association so altered as aforesaid :

A.D. 1905

And whereas the present capital of the existing company consists of twenty-one thousand pounds divided into one thousand four hundred shares of fifteen pounds each and of such capital one thousand and nine shares have been created and issued and are fully paid up :

And whereas the existing company purchased the piece of land described in the First Schedule to this Act and erected gasworks thereon and have from time to time improved and enlarged the same and are now supplying gas in the town of Hessle aforesaid and in the adjoining parish of Anlaby in the east riding of the county of York :

And whereas the demand for gas in the district in which gas is supplied by the existing company has increased and is increasing and there is also a demand for gas in the parishes of Willerby and Kirk Ella in the east riding of the county of York aforesaid and it is expedient that the existing company should be dissolved and the members thereof re-incorporated with the powers hereinafter conferred and that the Company so re-incorporated be authorised to extend and improve the said gasworks and that additional capital be provided for such extension and improvement and for other the purposes of this Act :

And whereas it is expedient that the Company so re-incorporated should be authorised to acquire easements for laying down gas mains pipes and other apparatus as in this Act provided :

And whereas a plan of the lands over or in which easements are to be acquired under the powers of this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or over or in which such easements may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the east riding of the county of York which plan and book of reference are in this Act respectively referred to as "the deposited plan and book of reference" :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :--

Short title

1. This Act may be cited as the Hessle Gas Act 1905.

2. The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 (as amended by subsequent Acts) the Lands Clauses Acts and the Gasworks Clauses Act 1847 (except sections 31 to 34) are subject to the provisions of this Act incorporated with and form part of this Act:

A.D. 1905.
Incorporation of
general Acts.

Provided that section 13 of the Gasworks Clauses Act 1847 shall be read and construed as if the words "or any premises" were inserted therein after the words "private building" and section 35 of that Act shall be read and construed as if the words from "in case the whole" down to the words "have been paid" were omitted therefrom and as though the expression "the prescribed rate" included the standard rates of dividend or such rates as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the renewal and insurance funds:

And the Gasworks Clauses Act 1871 shall apply to the existing undertaking of the existing company as if the same had been authorised by this Act.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. The expression "the Company" shall mean the Company incorporated by this Act and the expressions "the gasworks" and "the works" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvements extensions or enlargements thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and undertaking of the Company and every part thereof respectively.

Interpretation.

4. The limits of this Act shall be the urban district of Hessle and the parishes of Anlaby Willerby and Kirk Ella in the rural district of Sculcoates all in the east riding of the county of York except such portion of the said parish of Anlaby as consists of the premises known as East Ella House on the Hull and Kirk Ella Road otherwise called Anlaby Road.

Limits of Act.

A.D. 1905.

Incorporation of Company.

5. From and after the passing of this Act the existing company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a Company for the purposes hereinafter mentioned and shall be incorporated by the name of "The Hessle Gas Light and Coke Company" and by that name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General purposes of Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving extending and enlarging the gasworks of the existing company and of manufacturing and storing gas and of supplying gas within the limits of this Act and for converting or utilising and distributing materials used in and about the manufacture of gas and of residual products resulting from such manufacture and for converting or utilising and distributing such residual products and for dealing in selling and disposing of gas coke coal lime tar chemicals and residual and manufactured products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas or by the combination of any of the above-mentioned matters either with each other or with other substances and for carrying on the business usually carried on by gas companies.

Present property of existing company vested in Company incorporated by this Act.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the existing company or any person in trust for them or to which the existing company were in anywise entitled and all mains and pipes plant plugs lamps irons retorts gauges meters gas-stoves lamp-posts syphons apparatus stock effects matters and things which may have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the existing company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the existing company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the existing company and immediately before the passing of this

Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the existing company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

A.D. 1905.

8. Subject to the provisions of this Act the memorandum and articles of association of the existing company shall as to any prospective operation thereof be wholly void and the Company and the holders of shares and stock therein shall be exempted from all the provisions restrictions and requirements of any Act which applied to the existing company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the existing company if this Act had not been passed.

Memoran-
dum and
articles of
association of
existing com-
pany to be
void without
prejudice to
remedies for
antecedent
breaches
thereof.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the existing company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and the holders of shares and stock therein and the property of the Company shall to all intents and purposes represent the existing company and the members thereof as such and the property of the existing company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Nothing to
affect pre-
vious rights
and liabili-
ties.

A.D. 1905.

Contracts
prior to
Act to be
binding.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the existing company or any trustees or persons acting on behalf of the existing company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the existing company or any trustees or persons acting on behalf of the existing company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the existing company or any member thereof in relation to the affairs of the existing company or to which the existing company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the existing company or any member thereof if this Act had not been passed the Company and the holders of shares and stock therein being in reference to the matters aforesaid in all respects substituted for the existing company and the members thereof respectively.

Trustees of
existing
company to
be indemnified.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the existing company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the existing company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy liabilities of
existing
company.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the existing company immediately before the

passing of this Act were subject and shall indemnify the members directors officers and servants of the existing company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. A.D. 1905.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the existing company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. Recovery of gas rents &c.

15. All persons who immediately before the passing of this Act owed any money to the existing company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the existing company or for the payment of which the existing company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before passing of Act.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under the memorandum or articles of association of the existing company for and with respect to any shares or stock in the existing company shall remain in full force and continue and be available in all respects as if the said memorandum and articles had not been avoided. Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance. Books &c. continued evidence.

18. All officers and servants of the existing company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act. Officers to continue until removed.

A.D. 1905.

Present
registers of
members to
be continued.

19. The books kept by the existing company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share held by them respectively shall until some other register of shareholders or holders of stock shall be provided by the Company continue to be kept for the like purpose by the Company and be taken and considered as the register of shareholders and of holders of stock required to be kept by the Companies Clauses Consolidation Act 1845.

Capital.

20. The capital of the Company shall be thirty thousand pounds and shall consist of—

(1) Capital stock of fifteen thousand one hundred and thirty-five pounds representing the capital of the existing company which is in this Act called “the original capital” and shall be deemed to be fully paid up; and

(2) Fourteen thousand eight hundred and sixty-five pounds which is in this Act called “the additional capital” and shall be raised in manner hereinafter mentioned:

And the Company may convert into stock the whole or any part of the additional capital when fully paid up.

Original
stock to
vest in
members of
existing
company.

21. The original capital shall be appropriated to and vested in the several persons who immediately before the passing of this Act were the registered members of the existing company in proportion to their respective holdings in and in substitution for their shares in the existing company and every portion of capital stock so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the passing of this Act affected the share or shares for which the same is substituted and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting the same.

Company
shall call in
and cancel
existing
share certi-
ficates and
issue new
certificates
in lieu
thereof.

22. The Company shall call in and cancel the existing certificates of shares in the existing company and issue in lieu thereof certificates under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

23. Capital stock in the original capital shall be transferable in sums of one pound or multiples of one pound and sections 18 19 and 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to capital stock and the interest thereon as if such stock and interest had been expressly mentioned therein.

A.D. 1905.

Transfer of capital stock.

24. Every holder of stock or shares of the Company shall be entitled to one vote in respect of every ten pounds nominal value of stock or shares or of stock and shares held by him.

Votes of share and stock holders.

25. The Company may from time to time raise the additional capital by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by one or more of those modes respectively but the Company shall not issue any share of less nominal value than five pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fourteen thousand eight hundred and sixty-five pounds.

Power to Company to raise additional capital.

26. Except as is in this Act otherwise provided the profits of the Company to be divided among the stockholders and shareholders in any year shall not exceed the following rates (hereinafter in this Act referred to as "the standard rates of dividend") (that is to say):—

Profits of Company limited.

On the original capital the rate of ten pounds in respect of every one hundred pounds of such capital; and

On the additional capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

27. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of the standard rates of dividend on each class of ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Dividends on different classes of shares or stock to be paid proportionately.

A.D. 1905.

Shares or
stock in
additional
capital to be
offered by
auction or
tender.

28. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital are to be issued and before offering the same to the holder of any other shares or stock in the capital of the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock shall be accepted in preference.

Purchase
money of
capital sold
to be paid
within three
months.

29. It shall be one of the conditions of any sale of shares or stock portion of the additional capital that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be
given as to
sale of shares
or stock by
auction or
tender.

30. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of every district council whose district or any part of whose district is within the limits of the Company for the supply of gas and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders (as the case may be) and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of this Act.

Disposal of
shares or
stock not
sold by auc-
tion or
tender.

31. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of

A.D. 1905.

sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863. Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale (if the directors of the Company think fit) be less than the nominal amount thereof and any shares or stock not then sold shall be again disposed of by the directors or offered to the holders of ordinary shares or ordinary stock of the Company at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

32. Any sum of money which shall arise from the issue of any such shares or stock portion of the additional capital by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that in any case where a power to raise money by borrowing or to create an insurance or renewal fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

Application
of premium
arising on
issue of
shares or
stock.

33. The directors of the Company may if they think fit annually appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital for the time being of the Company for the purpose of forming a fund to be called "the renewal fund" to provide for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes.

Renewals.

Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate

A.D. 1905. at compound interest until the fund so formed amounts to a sum equal to ten per centum on the paid-up capital for the time being of the Company and not exceeding two thousand pounds.

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen.

If profits exceed amount limited excess may be invested and form an insurance fund.

34. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend on the ordinary capital of the Company at the authorised rates the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

Application of excess of profits over authorised rates of dividend.

35. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) of the Company and the dividend on the ordinary capital of the Company at the authorised rates the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

36. Where in any year the dividends on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year, being below the standard prices then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the existing company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as is in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

A.D. 1905.

Power to
create a re-
serve fund
out of divi-
dends in ex-
cess of stan-
dard rates of
dividend and
application
thereof.

37. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the original capital and of the additional capital and at the time actually issued by shares or stock but no part thereof shall be borrowed in respect of such additional capital, until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that such shares or stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to
borrow.

38. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being owing by the Company on mortgage.

For appoint-
ment of a
receiver.

A.D. 1905.
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Debenture
stock.

39. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts &c.

40. All moneys raised on mortgage by the Company under this Act and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company by any person in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Application
of moneys.

41. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

First ordi-
nary meet-
ing.

42. The first ordinary meeting of the Company shall be held in the months of February or March one thousand nine hundred and six and the subsequent ordinary meetings of the Company shall be held in the months of February or March in every year or at such other time as shall be appointed for that purpose by an order of a general meeting of the Company.

Number of
directors.

43. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Qualification
of directors.

44. The qualification of a director shall be the possession in his own right of stock or shares or of stock and shares (not

being debenture stock) of the Company to the nominal amount of not less than one hundred and fifty pounds. A.D. 1905.

45. The quorum of a meeting of directors shall be three. Quorum of directors.

46. Arthur Wilson Francis Richard Pease Alexander Smith George Bohn and William Parker Burkinshaw shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for re-election and at the ordinary meeting to be held in every year after the ordinary meeting held next after the passing of this Act the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act. First directors.
Election of directors.

47. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 the Company may by an order of a general meeting prescribe the number of auditors for the time being of the Company for the purposes of the Companies Clauses Consolidation Act 1845 and such prescribed number may be a single auditor or not more than three auditors and it shall not be necessary for any person to be elected auditor to be the holder of any shares or stock in the Company. As to appointment of auditors.

48. The directors may in any year without calling a meeting of the holders of shares and stock in the Company for the purpose declare an interim half-yearly dividend on any class or classes of shares or stock in the capital of the Company out of the then ascertained profits of the Company. Provided that the amount of any such half-yearly interim dividend so declared shall not exceed in any one half year one half of the amount of the maximum dividend for the year. Power to declare interim dividends.

49. It shall be lawful for the directors to close the register of transfers for a period not exceeding fourteen days previous Closing of register of transfers.

A.D. 1905. — to each ordinary meeting of the Company and also for a period not exceeding fourteen days previous to the declaration of any interim dividend.

Books to be balanced to 31st day of December.

50. The period at which the books of the Company shall be balanced shall be at the end of each year ending the thirty-first day of December.

Contract not to disqualify for office of director.

51. Any contract to be made under this Act with any corporation or public body shall not disqualify any of the members of such corporation or public body for the office of director of the Company and no director or shareholder of the Company shall be disqualified for the office of director of the Company by reason of any contract between him and the Company for any loan of money to the Company but no director of the Company being a member of any such corporation or public body shall vote upon any question with reference to any contract with such corporation or public body.

Powers as to maintenance and construction of gas-works.

52. Subject to the provisions of this Act the Company may continue maintain alter improve enlarge extend and renew or discontinue the gas and other works of the existing company upon the lands described in the First Schedule to this Act and may upon such lands or any part thereof respectively erect make and maintain alter improve enlarge extend and renew or discontinue works for the manufacture of gas and the conversion utilisation storage and distribution of materials used in and about the manufacture of gas and of residual products resulting from such manufacture and upon those lands they may accordingly manufacture gas and convert utilise and distribute such materials and residual products as aforesaid and may also on those lands store gas and such materials and residual products and the Company may also from time to time provide lay down erect maintain alter improve enlarge extend and renew or discontinue drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such other acts as they may think proper for making storing and supplying gas within the limits of this Act and may subject to the provisions of this Act supply gas accordingly and may deal in and sell and dispose of coke coal-tar lime and residual products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas and carry on the business usually carried on by gas companies or by companies or persons dealing in any of the matters and things aforesaid.

53. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the First Schedule to this Act lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the First Schedule to this Act.

A.D. 1905.

Power to
purchase
lands by
agreement.

54.—(1) The Company may enter upon the roads lands railway and property in the parish and urban district of Hessle in the east riding of the county of York shown on the deposited plan and described in the deposited book of reference and included within "the limits of easements to be acquired" marked on the said plan and which roads lands railway and property are also described in the Second Schedule to this Act and may subject to the provisions of this Act break up and open the site and soil of the said roads lands railway and property and may in under over or along the same maintain and from time to time enlarge repair renew and inspect the existing and any new gas mains or pipes and apparatus in under or over such roads lands railway and property and may from time to time lay down and maintain new gas mains pipes and apparatus in under or over such roads lands railway and property and for all or any of such purposes may have the right of access to and over any such roads lands railway and property.

Power to
acquire ease-
ments.

(2) The Company shall make to the owners and occupiers and other parties having any estate or interest in such roads lands railway and property compensation for the rights or easements of so laying down maintaining repairing renewing and inspecting such gas mains pipes or apparatus and may give notice to treat in respect to such rights or easements and the provisions of the Lands Clauses Acts inclusive of those with regard to arbitration and the summoning of a jury shall apply to the purchase of such rights or easements as if such purchase were a purchase of land within the meaning of such Acts.

55. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege required for the purposes of this Act (not being an easement right or privilege of water in which persons other than the grantors have an interest) in over

Power to
take ease-
ments &c. by
agreement.

A.D. 1905. or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Correction of errors &c. in deposited plan and book of reference.

56. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown upon the deposited plan or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the east riding of the county of York for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said east riding of the county of York and such certificate shall be kept by such clerk with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to acquire easements over such lands for the purposes hereinbefore mentioned or exercise their powers in accordance with such certificate.

Power to supply gas fittings &c. for heating and other purposes.

57. The Company may purchase supply sell let for hire use and otherwise deal in fit up fix alter repair remove and refix but shall not manufacture meters engines stoves ranges pipes fittings and other apparatus (all of which are in this section included in the expression "apparatus") and appliances for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the same are sold supplied let fixed up altered repaired removed refixed or done.

Apparatus let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent nor to be taken in execution under any process of a court of law or equity or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such apparatus has

upon it a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. A.D. 1905.

58. The standard prices to be charged by the Company for gas supplied by them to persons who shall consume the same by ordinary meter shall be three shillings and sixpence per thousand cubic feet for gas supplied within the urban district of Hessle or the parish of Anlaby and four shillings per thousand cubic feet for gas supplied within the parishes of Willerby or Kirk Ella : Dividends dependent on prices charged.

Provided that the Company may increase or reduce the prices charged by them for gas above or below the standard prices subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows :—

In respect of any year during any part of which the prices charged by the Company for gas shall have been one penny or part of a penny above the standard prices respectively the dividend payable by the Company for that year shall in respect of each penny or part of a penny by which the standard prices shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of original capital and by three shillings and sixpence on every one hundred pounds of additional ordinary paid-up capital and so in proportion for any fraction of one hundred pounds but such reduction shall be calculated only upon whichever of the said prices shall have been increased to the greater extent ;

And in respect of any year during the whole of which the prices charged by the Company for gas shall have been one penny or more below the standard prices respectively the dividend payable by the Company for that year may in respect of each penny by which the standard prices shall have been reduced be increased above the standard rate of dividend by five shillings on every one hundred pounds of original capital and by three shillings and sixpence on every one hundred pounds of additional ordinary paid-up capital and so in proportion for any fraction of one hundred pounds but such increase shall be calculated only upon whichever of the said prices shall have been reduced to the less extent :

Provided also that if in any year the dividend payable shall comprise a fractional amount less than one quarter per centum

A.D. 1905. — the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

Charges for
gas supplied
by means of
prepayment
meters.

59.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers within or without the urban district of Hessle (as the case may be) through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings other than cookers to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of tenpence per thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings exclusive of cooker used therewith.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of eightpence per one thousand cubic feet.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Pressure of
gas.

60. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and

to penalties shall *mutatis mutandis* apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted. A.D. 1905.

61. The prescribed number of candles shall be fourteen. Quality of gas.

62. Within twelve months from the passing of this Act a testing place shall be provided upon some part of the works or lands of the Company or within two hundred yards from any part thereof. Testing place.

63. The Company may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply *mutatis mutandis* to and for the purposes thereof. Power to lay pipes in streets not dedicated to public use.

64. The prescribed burner shall be Sugg's No. 1 London argand burner with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame rises above the top of the glass a six-inch by two-inch chimney shall be used. Burner.

65. The Company may take hold and use within the limits of this Act patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture conversion utilisation or distribution of gas and of such materials and residual products as aforesaid. Power to hold licences under letters patent.

66.—(1) The Company may contract with any local authority company or person beyond the limits of this Act (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. Company may enter into contracts for supply of gas.

(2) The Company may enter into any contract with any person for a supply of gas to any premises within the limits of

A.D. 1905. — this Act and such supply may be given for such purposes and subject to such terms and conditions as to price and otherwise as may be agreed upon between the Company and the person taking such supply :

Provided that the Company shall not under the powers of this subsection give any preferential price as between any consumers who shall take a supply from the Company for like purposes and under similar conditions and circumstances.

(3) The Company shall not supply gas under any such contract as aforesaid beyond the limits of this Act if and so long as such supply would interfere with the supply of gas to private consumers.

Gas consumers to give notice to Company before removing.

67. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Power to refuse supply to persons in debt for other property.

68. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to discontinue supply of gas.

69. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Period of error in defective meters.

70. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall

be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. A.D. 1905.

71. The Company may if they think fit allow discounts or rebates not exceeding in any case ten per centum to consumers of gas in consideration of prompt payment of gas rents and not exceeding twenty per centum in consideration of large consumption upon such scale and subject to such conditions and regulations as may be prescribed by the Company Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers and notified on demands for gas rents. Discounts.

72. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to specification of internal fittings and construction and placing of pipes &c. between mains and consumers' premises.

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

(2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating in the urban district of Hessle and a copy thereof shall be kept exhibited in the office of the Company:

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in

A.D. 1905.

the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

*Anti-fluc-
tuators for
gas engines.*

73. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times and at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

*Power to
apply for a
Provisional
Order to
supply elec-
trical energy.*

74. The Company if they think fit may under the provisions of the Electric Lighting Acts 1882 and 1888 make application for a Provisional Order or licence to supply electrical energy for public and private purposes and may apply their funds for the purpose of such application.

*For pro-
tection of
British
Gaslight
Company
Limited.*

75. Nothing in this Act contained shall be construed so as to enable the Company to prevent the British Gaslight Company Limited from supplying gas to the Hull and Barnsley Railway Company for use on the portion of the railway and works of the last-mentioned company situated in the parish of Anlaby aforesaid and bounded on the east by the road known as Calvert Lane and on the west by the road numbered 50 in the said parish of Anlaby on the Ordnance map (scale $\frac{1}{2500}$ published in 1890).

76. The following provisions for the protection of the North Eastern Railway Company (hereinafter called "the railway company") shall unless with the previous consent of the railway company in writing under their common seal apply and have effect:—

A.D. 1905.

For protection of North Eastern Railway Company.

- (1) All mains and pipes laid or proposed to be laid by the Company under the powers of this Act over or under any bridge of the railway company shall be carried over or under the same in such a way as not to interfere with the structure of any such bridge and all other mains and pipes laid or proposed to be laid or maintained by the Company under the powers of this Act which shall cross any railway of the railway company shall be laid under the same so as to cause as little interference as may be with such railway and so as to cause no interruption to the passage or conduct of traffic over such railway :
- (2) In laying maintaining repairing renewing and inspecting any mains pipes or other works over upon across or under any work or property of the railway company the Company shall execute and maintain their works under the direction and superintendence and to the reasonable satisfaction of the engineer of the railway company and in accordance with plans drawings and specifications previously submitted to and reasonably approved by him and shall pay and make good to the railway company all loss damages and expenses which the railway company shall sustain or be put to by or in consequence of the laying maintenance or user of the said mains pipes and other works or by or in consequence of the bursting of or any other accident to any main or pipe of the Company :
- (3) If at any time it is found necessary in order to enable the railway company to carry out any alterations or extensions of their railway or works that the position of such mains or pipes shall be altered the Company shall on receiving notice in writing from the railway company so to do at their own cost alter the position of the same so far as may be necessary to enable the railway company to carry out such alterations or extensions And the Company shall be entitled to lay down and maintain such mains or pipes in such altered position as if the same had been originally sanctioned

A.D. 1905.

in such position and the provisions of this section shall apply to the said mains or pipes in their altered position :

- (4) The Company shall not without the consent in writing of the railway company purchase or take any property of the railway company but they may purchase and take and the railway company may and shall sell and grant accordingly such rights easements or privileges in under over or along any roads lands railway or property of the railway company delineated on the deposited plan as shall be necessary for the purpose of laying down maintaining repairing renewing and inspecting the mains and pipes and other works by this Act authorised and the Company shall not either temporarily or permanently enter upon use or interfere with any railway or property of the railway company save only so far as may be necessary for the purpose of laying down maintaining repairing renewing or inspecting the said mains pipes and works in accordance with the provisions of this Act :
- (5) Any difference arising between the Company and the railway company under this section shall be determined by an engineer to be appointed failing agreement by the Board of Trade.

For protec-
tion of rural
district
council of
Sculcoates.

77. The following provisions for the protection of the rural district council of Sculcoates (in this section referred to as "the council") shall unless otherwise agreed between the Company and the council have effect :—

- (1) The powers and provisions of this Act shall be carried into effect so that a supply of gas throughout the roads and streets and parts of roads and streets in the parishes of Anlaby Willerby and Kirk Ella which are mentioned in the Third Schedule to this Act shall be available within three years from the passing of this Act and on the same terms and subject to the same conditions as shall apply for the time being to the supply of gas within the urban district of Hessle except that the price charged by the Company for gas supplied within the parishes of Willerby and Kirk Ella respectively may exceed by not more than sixpence per thousand cubic feet the price charged for the time being by the Company for gas supplied within the urban district of

Hessle And if the Company make default in rendering available a supply of gas throughout the said roads and streets and parts of roads and streets mentioned in the said Third Schedule or any of them within three years from the passing of this Act they shall be liable for each such default to a penalty not exceeding forty shillings for each day during which the default continues :

- (2) The Company shall not permit any trench made by them in any road street culvert or bridge within the district of the council to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length where only two carts can pass at the same time :
- (3) Where any pipe or conduit of the Company of a larger internal diameter than three inches is required to be laid or constructed beneath the surface of that part on which carts and carriages usually pass of any such road street culvert or bridge as aforesaid the same shall be laid or constructed at such a depth that not less than eighteen inches shall intervene between the surface of such road street culvert or bridge and the upper surface of such pipe or conduit except in any case where it shall be unavoidably necessary to lay or construct such pipe or conduit nearer to such surface :
- (4) If the council shall for the purpose of altering any such road street culvert or bridge as aforesaid or rebuilding or altering any such culvert or bridge at any time necessarily require the position or level of any pipe conduit or other work of the Company laid under or through any such road street culvert or bridge as aforesaid to be altered the Company shall at their own expense on receiving notice in writing under the hand of the clerk of the council so to do alter the same as reasonably required by such notice and under the superintendence and direction of the engineer or surveyor of the council and any additional reasonable expense in relation to the alteration or the rebuilding of any such bridge as aforesaid or the approaches thereto to which the council may be put by reason of necessity for providing for any pipe conduit or

A.D. 1905.
—

other work of the Company shall be paid by the Company to the council. Any difference as to the reasonableness of any requirement contained in any such notice or as to the amount of any sum to be so paid by the Company to the council shall be determined by arbitration as hereinafter provided :

(5) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed (in default of agreement) by the president for the time being of the Institution of Civil Engineers on the application of either party :

(6) Notwithstanding anything in this Act or in the Electric Lighting Act 1888 contained the Company shall not apply for a Provisional Order authorising the supply of electricity by the Company within the district of the council except with the consent of the council.

Works below
high water
mark not be
commenced
without
consent of
Board of
Trade.

78. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant-secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Saving
rights of
Crown.

79. Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the King's most Excellent Majesty and in particular nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of

any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give).

A.D. 1905.

80. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

Copy of
Act to be
registered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

81. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1905.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

Lands in the parish and urban district of Hessle in the east riding of the county of York now belonging to the existing company containing twelve thousand four hundred and sixty-three square yards or thereabouts situate on the south side of the Hull and Selby Railway of the North Eastern Railway Company near to and east of where the said railway crosses over the Hessle Haven which lands are bounded on the north thereof by the said railway on the south and east thereof by other property of the North Eastern Railway Company and on the west thereof in part by the said railway in other part by other property of the North Eastern Railway Company being part of a road leading from the Ferry Road across a recently constructed bridge over the Hessle Haven aforesaid to the works of the existing company and in remaining part by other property of the North Eastern Railway Company being a road recently constructed by them and leading from the first-mentioned road in a southerly direction towards the River Humber and which lands comprise the whole of the lands numbered 59 in the said parish of Hessle on the Ordnance map (scale $\frac{1}{2500}$ first edition 1890) and parts of the lands numbered 60 in such parish on the said Ordnance map.

THE SECOND SCHEDULE.

The roads lands railway and property in the parish and urban district of Hessle in the east riding of the county of York hereinafter described (namely):—

- (1) The road leading from Ferry Road to the gasworks of the existing company :
- (2) A strip of land extending from the north-westernmost corner of the before-mentioned works in a south-westerly direction on the north side of and parallel with such lastly described road to the bridge carrying such road over the Hessle Haven thence northward across the Hull and Selby Railway aforesaid to the road and lands next hereinafter described :

- (3) The road leading from the northern boundary fence of the said railway near the outfall of the Fleet drain over a bridge across the said outfall to the Ferry Road including the waste and other lands and banks at the sides thereof: A.D. 1905.
- (4) A strip of land extending from the retort-house at the gasworks of the existing company in a northerly direction across the said railway and thence in a south-westerly direction along the northern side of that railway to and across the outfall of the Fleet drain to a point about twelve yards beyond the same thence northwards over certain waste lands of the North Eastern Railway Company into the said road lastly hereinbefore described.

THE THIRD SCHEDULE.

That portion of the Hessle and Beverley road extending in a northerly direction from the termination of the Company's present main opposite the gates of Tranby Croft Lodge in the said parish of Anlaby to the south-east corner of the grounds of Wolfreton House in the said parish of Kirk Ella.

North Street in Anlaby aforesaid as far as the east end of Railway View.

Pryme Street in Anlaby aforesaid extending from the Red Lion Inn in an easterly direction to the boundary of the grounds of Manor House.

That portion of the Hull and Kirk Ella road otherwise Anlaby road extending from the termination of the Company's present main in the said road at Anlaby aforesaid in an easterly direction as far as the east side of Birchwood Villa in Anlaby aforesaid.

That portion of the Hessle and Beverley road aforesaid extending in a northerly direction from the said south-east corner of the grounds of Wolfreton House along the Town Street of Willerby as far as the stable-yard gate of the Hall in Willerby aforesaid.

That portion of Willerby Carr Lane in Willerby aforesaid extending from the Hull and Beverley road in an easterly direction as far as Albion House.

That portion of the Town Street in Kirk Ella aforesaid extending from the Hessle and Beverley road aforesaid near the sixth mile post from Beverley aforesaid in a westerly direction to the south-west corner of Kirk Ella churchyard and then first in a northerly direction and afterwards in a westerly direction as far as the stable entrance of Kirk Ella Hall.

That portion of the road in the parish of Kirk Ella aforesaid which leads in a westerly direction from the Town Street opposite the steps on

A.D. 1905. the west side of Kirk Ella churchyard extending from the said Town Street to Conservative Cottage.

The by-road in the parish of Kirk Ella aforesaid which leads in a north-westerly direction from the Town Street opposite the south-west corner of Kirk Ella churchyard to the road last hereinbefore described.

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